

TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 12:00 p.m. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

June 30, 2026

10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	Doe #1 J.H. vs. Roe 1 22-01299957	Demurrer to Second Amended Complaint Defendant ASSEMBLIES OF GOD, NORTHERN CALIFORNIA & NEVADA DISTRICT COUNCIL, INC. seeks an order sustaining its demurrer to the 1-7th causes of action of Plaintiff's SAC. As a threshold matter, Defendant argues that the 2nd (IIED), 3rd (Sexual Harassment), 6th (Violation of Civil Rights) and 7th (Battery) causes of action are barred by their respective statutes of limitations. Plaintiff alleges that he is 50 years old, and was a victim of childhood sexual assault, occurring in 1987-1989. (SAC¶1, 9.) He filed this lawsuit in 2022. Defendant argues the above causes of action are barred because CCP§340.1 was not intended to revive those causes of action.

		Plaintiff argues that the applicable version of CCP§340.1 (for 2022, the year the cause of action was filed), revives those causes of action because the 2022 version refers to “causes of action”. Indeed, in the 2022 version, CCP 340.1(r) provides that its time limits “revive any action” commenced after 2019, which is the case here. It also refers to “any action or causes of action that would have been barred by the laws in effect before the date of enactment.” Further, CCP 340.1(d) specifically provides that the enumerated statutes are not exhaustive; i.e. “This subdivision does not limit the availability of causes of action permitted under subdivision (a), including causes of action against persons or entities other than the alleged perpetrator of the abuse.” The statute does not limit the causes of action or theories, so long as the damages claimed arise from the “childhood sexual assault.” Therefore, the Code itself, as it was written in 2022 allowed for the revival of causes of action other than sexual assault. Therefore, the demurrer based on the SOL arguments is not well taken. Notably, on demurrer, a complaint must be liberally construed. Code Civ. Proc. § 452; <i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 601. All material facts properly pleaded, and reasonable inferences, must be accepted as true. <i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4th 962, 966-67. A pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. The degree of detail required depends on the extent to which the defendant in fairness needs such detail which can be conveniently provided by the plaintiff. Less particularity is required when the defendant ought to have co-extensive or superior
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	knowledge of the facts. Under normal circumstances, there is no need for specificity in pleading evidentiary facts. However, bare conclusions of law are insufficient. Code Civ. Proc. §§ 425.10(a), 459; Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 549-50; Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112, 1126; Doheny Park Terrace HOA v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1098-99; Berger v. California Insurance Guarantee Assn (2005) 128 Cal.App.4th 989, 1006. SEXUAL ABUSE OF A MINOR (Against All Defendants) Defendant argues the SAC states no facts that support the legal contention District Council had any actual knowledge of Perpetrator’s misconduct necessary to establish ratification. However, at ¶44, among others, Plaintiff pleads ratification: 44. Defendants ratified Perpetrator’s sexual abuse of Plaintiff because Defendants had actual knowledge that Perpetrator had sexually harassed and abused minors, including but not limited to Plaintiff, yet they intentionally turned a blind eye and still allowed Perpetrator to work for Defendants, and did nothing to prevent any further abuse from occurring, thus allowing Perpetrator to gain access to and ultimately manipulate and sexually abuse minors, including Plaintiff. Defendants did not discipline or discharge Perpetrator; as such, they accepted and thus ratified his conduct. Furthermore, Plaintiff alleges that “Defendants were aware of the abuse within the Royal Rangers program.” (SAC¶8.) The rules of pleading require only general allegations of ultimate fact [with limited exceptions such as at the statutory C/As discussed below]; the plaintiff need not plead evidentiary facts supporting the allegation of ultimate fact. (Doe v. City of Los Angeles (2007) 42
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	Cal.4th 531, 550 [“the complaint ordinarily is sufficient if it alleges ultimate rather than evidentiary facts”]; Lim v. The.TV Corp. Internat. (2002) 99 Cal.App.4th 684, 690 [“California law emphasizes ultimate fact pleading (with some exceptions, notably for fraud and related torts) in ordinary and concise language, and the test for adequacy is not absolute but whether the pleading as a whole apprises the adversary of the factual basis of the claim;” internal citations and quotation marks omitted].) Plaintiff has sufficiently put Defendant on notice of the claim against it. For the purposes of demurrer, the Court must accept the facts as true. As to the 1st cause of action the Demurrer is Overruled. INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS (Against All Defendants) Defendant makes the same actual knowledge/ratification argument as above. Demurrer is Overruled as to the 2nd cause of action. SEXUAL HARASSMENT (Civ. Code §§ 51.9 & 52) (Against All Defendants) Here, in contrast to the other C/As challenged by the demurrer, this C/A is based on statute. Statutory claims must be pled with specificity. (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790; Fisher v. San Pedro Peninsula Hospital (1989) 214 Cal.App.3d 590, 604. This cause of action incorporates the prior allegations by reference (Para. 52), and then goes on to generally allege the statutory elements (Paras.53-36.) This is insufficient for this cause of action based on statute. While plaintiff’s allegations are sufficient for his
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		general tort claims, he needs to allege more specific facts as to the statutory claims alleged. As this is the demurrer to the Second Amended Complaint, the demurrer to the 3rd cause of action is Sustained without leave to amend. NEGLIGENCE (Against All Defendants) NEGLIGENT SUPERVISION (Against All Defendants) As to the 4th and 5th causes of action, Defendant appears to seek specific and detailed facts of the alleged incidents, which are not required at this stage in the litigation. Defendant is on notice of the claims against it. The Demurrer is Overruled as to the 4th and 5th negligence based causes of action. VIOLATION OF CIVIL RIGHTS (Against All Defendants) Plaintiff brings this cause of action pursuant to Civ. Code, § 52.1, the Tom Bane Civil Rights Act. “The Bane Act civilly protects individuals from conduct aimed at interfering with rights that are secured by federal or state law, where the interference is carried out ‘by threats, intimidation, or coercion.’” (Reese v. City of Sacramento (9th. Cir. 2018) 888 F.3d 1030, 1040; Civ. Code § 52.1 (a). “Section 52.1 ‘provides a cause of action for violations of a plaintiff’s state or federal civil rights committed by “threats, intimidation, or coercion.”’ (Reese, 888 F.3d at 1040, quoting Chaudry v. City of Los Angeles (9th Cir. 2014) 751 F.3d 1096, 1105.) Section 52.1 does not provide any substantive protections; instead, it enables individuals to sue for damages as a result of constitutional violations.
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	In Gabrielle A. v. County of Orange (2017) 10 Cal.App.5th 1268 (a 4th/3rd case) our court of appeal stated: “The Bane Act and related statutes ‘are California's response to [the] alarming increase in hate crimes.’ ... Civil Code section 52.1 provides that a person may bring a cause of action ‘in his or her own name and on his or her own behalf’ against anyone who ‘interferes by threats, intimidation or coercion, with the exercise or enjoyment’ of any constitutional or statutory right.” (Bay Area Rapid Transit Dist. v. Superior Court (1995) 38 Cal.App.4th 141, 144, 44 Cal.Rptr.2d 887.) “[T]o state a cause of action under section 52.1 there must first be violence or intimidation by threat of violence. Second, the violence or threatened violence must be due to plaintiff's membership in one of the specified classifications set forth in Civil Code section 51.7 or a group similarly protected by constitution or statute from hate crimes.” (Cabesuela v. Browning-Ferris Industries of California, Inc. (1998) 68 Cal.App.4th 101, 111, 80 Cal.Rptr.2d 60.) (Id. at 1290.) Here, Plaintiff pleads: 77. Plaintiff is informed and believes, and thereon alleges, that Defendants, and each of them, violated Plaintiff's civil rights and subjected him/her to physical violence. 78. During all times mentioned herein, Defendants, and each of them, separately and in concert, acted under color and pretense of law, under color of the statutes, ordinances, regulations, policies, practices, customs, and usages of the State of California. Each of the Defendants, separately and in concert, deprived Plaintiff of the rights and privileges secured to them by the Civil Code as alleged herein.
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Plaintiff here does not identify a specific constitutional or statutory right. Nor does he allege he is a member of a specific class of people that this law was designed to protect. Finally, this statutory cause of action is not pled with any particularity. (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790; Lopez v. Southern Cal. Rapid Trans. Dist. (1985) 40 Cal.3d 780, 795.)

As such, demurrer is sustained without leave to amend as to the 6th cause of action.

BATTERY (Against All Defendants)

“A battery is any intentional, unlawful and harmful contact by one person with the person of another.... A harmful contact, intentionally done is the essence of a battery.... A contact is “unlawful” if it is unconsented to...’[Citation.] The elements of a civil battery are: “1. Defendant intentionally did an act which resulted in a harmful or offensive contact with the plaintiff’s person; [¶] 2. Plaintiff did not consent to the contact; [and][¶] 3. The harmful or offensive contact caused injury, damage, loss or harm to the plaintiff.” ’ [Citation.]” (Piedra v. Dugan (2004) 123 Cal.App.4th 1483, 1495 [citing Fluharty v. Fluharty (1997) 59 Cal.App.4th 484, 497].)

Plaintiff alleges that Defendants “aided, incited, ratified, and/or conspired in the denial of Plaintiff’s rights to be free from sexual harassment by Perpetrator(s), who was their agent(s), and thus allowed Perpetrator(s) to repeatedly sexually harass and abuse Plaintiff, who was a minor at the time.” (SAC, ¶ 85.) He alleges that “Defendants caused Plaintiff to be touched with the intent to harm or offend Plaintiff by acting with a willful disregard of Plaintiff’s rights,” and that “Plaintiff did not consent to the touching, nor could Plaintiff have consented to the touching given his/her age at the time the touching occurred.” (FAC, ¶ 86, 88.)

		Ratification is a means to hold an entity liable for the torts of its employees or members. (See gen. Baptist v. Robinson (2006) 143 Cal.App.4th 151, 169–170.) Demurrer is overruled as to the 7th cause of action for the same reasons as the 1st cause of action. RJN is unnecessary to the Court’s ruling.
102	MutouJackson vs. Fullerton Police Department 25-01479364	Motion for Leave to First File Amended Complaint Plaintiff, Angelpharaoh MutouJackson (“Plaintiff”), in proper, moves for an order granting leave to file the attached First Amended Complaint. Defendant, City of Fullerton (the “City”), first contends that the motion should be denied as Plaintiff’s motion does not satisfy the requirements of the California Rules of Court and fails to comply with procedural requirements for seeking leave to file an amended complaint. A motion to amend a pleading before trial must: (1) include a copy of the proposed amendment or amended pleading; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (California Rules of Court, rule 3.1324(a).) A separate declaration must accompany the motion and must specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (California Rules of Court, rule 3.1324(b).) Here, while Plaintiff includes a copy of the proposed amended pleading, Plaintiff does not state what allegations in the original complaint are proposed to be deleted and what allegations are proposed to be added. Additionally, Plaintiff does not set forth when facts giving rise to the amended